

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
June 22, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2021-01184556 Foster vs. MTGL, Inc.	The tentative ruling is to continue the hearing on Plaintiff Gary E. Foster's ("Plaintiff") Motion for Final Approval of Class Action and PAGA Settlement to October 19, 2026 at 1:30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be re-read) at least 16 days before the next hearing date.

	There is no explanation for the change in the number of class members to 95, when the number was estimated to be 109 at the preliminary approval stage. The parties have not identified the number of aggrieved employees included in the settlement, and, if the number is different than 87 aggrieved employees, an explanation for the change must be provided. The [Proposed] Order and Judgment must also provide how the parties will comply with CRC Rule 3.771(b), which states: “Notice of the judgment must be given to the class in the manner specified by the court.” The notice may be included with the checks that are mailed to the class members or posted on the administrator’s website. Plaintiff has not submitted his attorneys’ bills or a detailed hourly breakdown of his attorneys’ hours to support the court’s review of plaintiff’s attorneys’ fees request. Further, there is no information on the number of years of experience for timekeepers Diego Aviles, Vedang J. Patel, Bijan Mohseni, Robert Payaslan, and Nairi Shirinian to assess the reasonableness of their hourly rates. Plaintiff is required to provide sufficient information to support the court’s lodestar cross-check of the fee request. The court is inclined to grant approval of an attorneys’ fees request of only 30% of the gross settlement amount or \$330,000.00, which the court finds fair, adequate and reasonable for the settlement of this size. An enhancement award of \$5,000 is sufficient and proper for a class and settlement of this size, and based on plaintiff’s contribution to the case. Counsel should propose a realistic Final Report Hearing date, taking into account the time deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The court usually sets these hearings nine months after settlement approval if the check cashing deadline is 180 days. The parties must report to the court the total amount that was actually paid to the class members. All supporting papers must be filed at least 16 days before the Final Report Hearing date.
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		Plaintiff has not shown that he served the LWDA with his moving papers. Plaintiff is ordered to give notice of the ruling to the LWDA, and to Defendant, to serve the LWDA with his original moving papers as well as any new papers filed for future hearings, and to file a proof of service showing such compliance.
2	30-2023-01334565 Duong vs. Mobilitie Holdings, LLC	Plaintiff Monique Duong's ("Plaintiff") Motion for Final Approval of Class Action Settlement is GRANTED IN PART. An enhancement award of \$5,000 is sufficient and proper for a class and settlement of this size, and based on plaintiff's contribution to the case. The court also finds that an attorneys' fee award totaling \$106,740.00 or 30% of the Gross Settlement Amount, is fair, adequate and reasonable for the class and settlement of this size, contingent nature of representation and the results achieved. The court concludes that the \$355,800.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$106,740.00 to plaintiff's counsel for plaintiff's attorneys' fees, reduced from the \$118,600.00 requested; • \$19,019.26 to plaintiff's counsel for plaintiff's litigation costs, as requested; • \$5,000.00 to Plaintiff Monique Duong as enhancement award, reduced from the \$7,500.00 requested; and • \$6,250.00 to CPT Group, Inc., the settlement administrator, as requested. The court notes that the gross settlement amount includes \$42,353.34 that was previously paid as a part of <i>Pick Up Stix</i> settlements. Thus, the total amount that will be payable to all class members, if they are paid the amount to which they are entitled pursuant to the judgment, is \$176,437.40.